



**Course Title: Islamic Studies/Ethics**

**Course Code: SS007**

**Course Coordinator: Qurat ul Ain Fatima**

**Email: [quratulain.fatima@lhr.nu.edu.pk](mailto:quratulain.fatima@lhr.nu.edu.pk)**

**Week-08**

**Chapter# 05**

**The Islamic Jurisprudence  
and its Sources**

## The esteemed status of Prophet Muhammad (PBUH) in the light of the Qur'an and Hadith

Allah, the Almighty, is the Creator and Sustainer of all worlds. Throughout every era, He has guided humanity by sending His messengers and revealing divine scriptures. The Prophet Muhammad (peace be upon him) is the final Messenger, and the Qur'an is the last and preserved revelation, intended to guide all of humanity until the end of time.

While all the Prophets hold a revered and honored position in Islam, Prophet Muhammad (PBUH) stands as their leader and holds a unique status among them. Allah, in His infinite wisdom, has granted him unparalleled ranks and distinctions. It is through him that the blessings of Allah reach us. Obedience to the Prophet (PBUH) is, in essence, obedience to Allah, and disobedience to him is regarded as disobedience to Allah.

The love and obedience of the Prophet Muhammad (PBUH) is a divine obligation. Understanding his esteemed status through the lens of the Qur'an and Hadith enables us to nurture sincere love for him. Without such love, it becomes difficult to truly love Allah and uphold His commands. This reflection on the unique rank of the Prophet (PBUH) serves to deepen our admiration and strengthen our connection to his noble example. Prophet Muhammad's status in the Qur'an

﴿قُلْ إِنْ كُنْتُمْ تُحِبُّونَ اللَّهَ فَاتَّبِعُونِي يُحْبِبْكُمُ اللَّهُ وَيَغْفِرْ لَكُمْ ذُنُوبَكُمْ وَاللَّهُ غَفُورٌ رَحِيمٌ﴾

Say, [O Muhammad], "If you should love Allah, then follow me, [so] Allah will love you and forgive you your sins. And Allah is Forgiving and Merciful." (Surah No. 3 - Ayah No. 31)

﴿فَلَا وَرَبِّكَ لَا يُؤْمِنُونَ حَتَّى يُحَكِّمُوكَ فِيمَا شَجَرَ بَيْنَهُمْ ثُمَّ لَا يَجِدُوا فِي أَنْفُسِهِمْ حَرَجًا مِمَّا قَضَيْتَ وَيُسَلِّمُوا تَسْلِيمًا﴾

But no, by your Lord, they will not [truly] believe until they make you, [O Muhammad], judge concerning that over which they dispute among themselves and then find within themselves no discomfort from what you have judged and submit in [full, willing] submission. (Surah No. 4 - Ayah No. 65)

﴿يَا أَيُّهَا الَّذِينَ آمَنُوا لَا تَقْدِمُوا بَيْنَ يَدَيِ اللَّهِ وَرَسُولِهِ وَاتَّقُوا اللَّهَ إِنَّ اللَّهَ شَمِيعٌ عَلِيمٌ. يَا أَيُّهَا الَّذِينَ آمَنُوا لَا تَرْفَعُوا أَصْوَاتَكُمْ فَوْقَ صَوْتِ النَّبِيِّ وَلَا تَجْهَرُوا لَهُ بِالْقَوْلِ كَجَهْرِ بَعْضِكُمْ لِبَعْضٍ أَنْ تَحْبَطَ أَعْمَالُكُمْ وَأَنْتُمْ لَا تَشْعُرُونَ﴾

O you who have believed, do not put [yourselves] before Allah and His Messenger but fear Allah. Indeed, Allah is Hearing and Knowing. O you who have believed, do not raise your voices above the voice of the Prophet or be loud to him in speech like the loudness of some of you to others, lest your deeds become worthless while you perceive not. (Surah No. 49 - Ayah No. 1&2)

### Prophet Muhammad's (PBUH) status in the light of Hadith

We will not be able to attain the essence of Iman until and unless we love Holy Prophet (PBUH) more than every relation of our life. As we cannot learn anything without effort and sacrifice, similarly his love also can't be induced automatically we have to learn and strive for his love. That is why Holy Prophet said:

“By Him in Whose Hands my life is, none of you will have faith till he loves me more than his father and his children.”

(Sahih al-Bukhari # 14)

**All the Prophets will show the way of Muhammad (PBUH) on the Day of Judgment.**

It is stated in a hadith of Bukhari that on the Day of Judgment when all the people will go to Adam (PBUH) then Nouh (PBUH) then Ibrahim (PBUH) then Musa (PBUH) then Isa (PBUH) but all of them will say we are afraid today that what will happen with us. Today only one man can intercede in the court of Allah the Almighty. Go to Prophet Muhammad (PBUH).

The Holy Prophet (PBUH) said;

The people will come to me, and I will prostrate myself underneath Allah's Throne. Then I will be addressed: O Muhammad a! Raise your head; intercede, for your intercession will be accepted, and ask (for anything) for you will be given.

(Sahih al-Bukhari # 3340)

This hadith shows the esteemed status of Prophet Muhammad (PBUH) in the court of Allah. When everyone will be afraid of Allah the Almighty only Prophet Muhammad (PBUH) will be allowed to speak with Allah directly. Allah the Almighty will not only listen to him but also accept his intercession. Prophet Muhammad (PBUH) will not ask for his forgiveness, he will ask for the forgiveness of humanity.

## Introduction of Hadith, it's components and significance in Islamic Literature

### Literal Meaning of the Hadith

The literal meaning of Arabic word hadith is “an item of news”, “conversation”, “a tale”, “a story”, “a report”, (this report can be historical or legendary, true or false whether relating to present or past). The secondary meaning of the hadith as adjective is “new” which opposed to qadīm (old).

### Technical meaning of the Hadith

The speech, acts, approval or moral conduct of the Prophet a is called hadith.

### The Sunna (Prophetic Tradition)

#### Literal Meaning

“In its literal meaning the word sunna stands for the “well known path” or the “well-trodden path” which is followed again and again.”

Ibn Manzur writes the meaning of Sunna as: Sunna means tariqah, dastur.

#### Technical Definition

The speech, act approval or moral value or good conduct which belongs to the Prophet (upon whom be peace and greetings) is called Sunna. No matter if this speech, act, approval or the conduct is of the after or before the announcement of the Prophet Muhammad's (PBUH) prophecy.

### Components of the Prophetic Tradition

There are mainly two components of Hadith/Sunna.

**Isnad (Chain of narrators)** – This is the chain of narrators through which the Hadith is narrated.

**Matan (Content)** – This is the main text of the Hadith, or the narrated speech of the Prophet Muhammad (PBUH).

Isnad means the name of persons mentioned before the text. It is the most significant part of the Deen. As the authenticity of hadith's text is totally dependent on these names. It will be easy to understand this concept with the help of an example.

حَدَّثَنَا الْحُمَيْدِيُّ عَبْدُ اللَّهِ بْنُ الزُّبَيْرِ، قَالَ: حَدَّثَنَا سُفْيَانُ، قَالَ: حَدَّثَنَا يَحْيَى بْنُ سَعِيدٍ الْأَنْصَارِيُّ، قَالَ: أَخْبَرَنِي مُحَمَّدُ بْنُ إِبْرَاهِيمَ النَّيْمِيُّ، أَنَّهُ سَمِعَ عَلْقَمَةَ بْنَ وَقَّاصٍ اللَّيْثِيَّ، يَقُولُ: سَمِعْتُ عُمَرَ بْنَ الْخَطَّابِ رَضِيَ اللَّهُ عَنْهُ عَلَى الْمِنْبَرِ، قَالَ: سَمِعْتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، يَقُولُ

This part is called isnad and the aforementioned is called the text.

إِنَّمَا الْأَعْمَالُ بِالنِّيَّاتِ

### Significance of Hadith in the light of Qur'an

The verses in which Almighty Allah has declared that Prophet's saying is equally legal than of the Allah:

وَمَا يَنْطِقُ عَنِ الْهَوَىٰ - إِنْ هُوَ إِلَّا وَحْيٌ يُوحَىٰ

“And he does not speak out from his own desire, His speech is nothing but a revelation, which is sent to him” (al-Najam, 53:3-4)

مَنْ يُطِيعِ الرَّسُولَ فَقَدْ أَطَاعَ اللَّهَ

“Whoever obeys the Messenger a obeys (but) Allah indeed.” al-Nīsā, 4:80

These are not enough Allah has conditioned his love for the Muslims with the obedience of the Prophet Muhammad (PBUH).

The point to be noted that the commands of obeying is about two authorities and by referring to Allah and the Messenger means the Qur'an and Hadith.

Allah Almighty and the Prophet (PBUH)

وَمَنْ يَعِصِ اللَّهَ وَرَسُولَهُ وَيَتَعَدَّ حُدُودَهُ يُدْخِلْهُ نَارًا خَالِدًا فِيهَا وَلَهُ عَذَابٌ مُهِينٌ

“But whoever disobeys Allah and His Messenger and exceeds His limits, He will admit him to Hell wherein shall he dwell forever; and there is a humiliating torment for him.”

### Significance of Hadith in the light of Prophetic Traditions

“al-Miqdam bin Ma'dkarib reported the Apostle of Allah as saying: “Beware! I have been given the Qur'an and something like it, yet the time is coming when a man replace on his couch will say: Keep the Qur'an: what you find into be is permissible treat as permissible, and what you find in it to be prohibited treat as prohibited, Beware! The domestic ass, beats of prey with fangs, a find belonging to a confederate, unless its owner does not want it, are not permissible, but if they do not, he has right to mulct them to an amount equivalent to his entertain.” (Abu Dawud, # 4604.)

In this tradition the Prophet has commanded about the matters which are not mentioned in the Qur'an. He commanded them on his own legal authority. In another hadith the significance pf hadith has been stated in the following words:

“Does any of you, while reclining on his couch, imagine that Allah has prohibited only what is to be found in the Qur'an? By Allah, I have preached, commanded and prohibited many matters as numerous as what is found in the Qur'an, or more numerous”. (Abu Dawud # 3050).

### The Forms of Representative Sovereignty of the Prophet Muhammad (PBUH)

According to the Qur'an and Sunna the ultimate sovereignty has been vested in the Prophet as:

#### i) Interpretative Authority (تشریحي حیثیت)

The Prophet a interpreted the verses of the Holy Qur'an for the believers. The Qur'an states about the interpretative capacity of the Holy Prophet a:

وَأَنزَلْنَا إِلَيْكَ الذِّكْرَ لِتُبَيِّنَ لِلنَّاسِ مَا نُزِّلَ إِلَيْهِمْ وَلَعَلَّهُمْ يَتَفَكَّرُونَ

“(They too were sent) with clear proofs and the Books. And, (O Glorious Messenger,) We have revealed to you the Glorious Reminder (the Qur’an) so that you may explain clearly to people (the message and the commandments) that have been sent down to them and that they may meditate.”

The Qur’an commands to pray the Salah approximately 700 times but doesn’t explain that how? When? And for how many times in a day. All these details are found in Prophetic traditions.

صَلُّوا كَمَا رَأَيْتُمُونِي أُصَلِّي

pray as you have seen me pray. (Sahih al-Bukhari # 605)

Same is the case in regard of months of Hajj, The specification of punishment of fornication. Similarly, Prophet Muhammad (PBUH) explained the times of fast’s term **بياض النهار** to his companions. It was the duty of Prophet Muhammad (PBUH) to explain the verses of the Qur’an.

The Qur’an commands to pray the Salah but doesn’t explain that how? When? And for how many times in a day. These details are found in Prophetic traditions.

## ii) Legislative Authority (تشريعي حيثيت)

Allah the Almighty has given the status of Legislation to Prophet Muhammad (PBUH). He has the manifestative authority of Allah in this world. It will be easy to understand this concept in the light of following references.

وَمَا آتَاكُمُ الرَّسُولُ فَخُذُوهُ وَمَا نَهَاكُمْ عَنْهُ فَانْتَهُوا

And whatever the Messenger has given you take; and what he has forbidden you-refrain from. Sura 59 verse #7.

Whatever he says or allows becomes the integral part of Islamic law. We can find its examples in many traditions.

The Messenger of Allah said: “Wearing silk and gold has been made unlawful for the males of my Ummah and lawful for its females.” (Tirmidhi # 1730)

We find another example during the address of farewell pilgrimage. When all the Companions knew the answers of the questions but they remain silent. This was the reverence of Prophet Muhammad (PBUH) as all of them were aware of Prophetic status.

The Prophet (PBUH) then asked, “Which month is this?” We said, “Allah and his Apostle know better.” He kept silent so long that we thought that he would call it by a name other than its real name. He said, “Isn’t it the month of Dhul-Hijja?” We said, “Yes.” He said, “Which town is this?” We said, “Allah and His Apostle know better.” He kept silent so long that we thought that he would call it by a name other than its real name. He said, “Isn’t it the town (of Mecca)?” We replied, “Yes.” He said, “What day is today?” We replied, “Allah and His Apostle know better.” He kept silent so long that we thought that he would call it by a name other than its real name. He said, “Isn’t it the day of Nahr?” We replied, “Yes.” He then said, “Your blood, properties and honor are as sacred to one another as this day of yours in this town of yours in this month of yours. (Sahih al-Bukhari # 5550)





## **Classification of Hadith**

There are different types of hadith according to its content, transmitters, and authenticity. Few important types are given below:

### **Classification of Hadith by Nature**

Hadith-i-Qudsi meaning “Divine”. These were narrated directly from Allah by the Prophet Muhammad (PBUH), who then passed it on to his Companions.

### **Hadith-i-Nabawi**

The Hadith directly narrated from the Prophet Muhammad (PBUH) by His Companions.

### **Classification of Hadith by accuracy**

The narrators hold an important position in the narration of Hadith. The accuracy of Hadith greatly depends on truthfulness, trustworthiness and reliability of the narrators. On the basis of authenticity and accuracy the scholars have divided ahadith into following four categories.

### **Sahih (Sound)**

The sound hadith is a hadith, the isnad of which coheres continuously through the transmission of one upright and accurate person from another up to its point of termination.

- A hadith in which five conditions of authenticity are found called sahih:
- Its chain of transmission should be connected, that is, every narrator should have taken it directly from the immediate narrator.
- Every narrator should be just, he should avoid major sins, he should not insist on minor sins, he should be of good nature and moral character.
- He should have perfect discipline; he should preserve the Hadith through writing or memorization and pass it on.
- That Hadith should not be rare.
- The narrator should not have passed bad comments against his predecessors.

### **Hasan (Fair)**

Fair is the hadith, the source of which is known and the transmitters of which are famous. Or A hadith whose narrators are “slightly more restrained” than the narrators of a Sahih Hadith, the rest of the conditions are the same.

### **Da’if (Weak)**

Linguistically, Da’if means “weak”, while technically it refers to a narration below the standard of Hasan. This is a Hadith in which any one or more of the five conditions of Sahih have not been met.

### **Mawdu (Fabricated)**

A hadith whose narrator has at some point lied about the hadith, every narration of such a narrator is called a fabrication. If the defect in the narrator is that he is known to lie on the Prophet Muhammad PBUH, his Ahadith are classified as Mawdu. Technically, a Mawdu

narration is not a Hadith at all, but a lie attributed to The Prophet Muhammad PBUH. It is referred to as a Hadith figuratively.

## **History and compilation of Hadith**

### **Era of the Prophet Muhammad (PBUH)**

- Companions of the Prophet sought guidance directly from him and made efforts to memorize and learn Hadith.
- The Prophet encouraged writing down his teachings and frequently repeated his words for clarity.
- Notable instances include:
  - ‘Abdullah bin Amr wrote down everything he heard from the Prophet, despite initial opposition from the Quraysh.
  - The Prophet instructed companions to write for those who requested it, such as Abu Shah.
  - Companions memorized Hadith and created written manuscripts, such as:
    - Sahifa Ali
    - Sahifa Sadiqa by Abdullah Ibn Amr
    - Sahifa Amr bin Hazam

### **Compilation of Hadith in Companions’ Era**

- Companions learned Hadith through memorization, recording, and practice.
- Official Teachings: During Hazrat Umar's caliphate, senior scholars were appointed to teach the Qur'an and Sunnah.
- Hadith Circles: Prominent Companions established circles to narrate and teach Hadith to successors, leading to various written manuscripts.

### **Era of the Successors (Tabi’in)**

- As Islam spread, the narration of Hadith increased, prompting the need to combat fabricated Hadith.
- Caliph Umar ibn Abdul-Aziz initiated the compilation of authentic Hadith.
- Scholars began documenting the biographies of Hadith narrators to ensure authenticity.

### **Era of the Followers (Taba Tabi’in)**

- This period marked a significant surge in Hadith compilation, characterized as a golden period.
- Important Hadith books were compiled, focusing on authentic transmission and the character of narrators.
- Notable compilations include:

- Sahih al-Bukhari by Imam Bukhari
- Sahih Muslim by Imam Muslim
- Other significant texts by Abu Dawud, Tirmidhi, Nisa'i, and Ibn Maja.

### **Conclusion**

- The compilation of Hadith began during the life of Prophet Muhammad, who instructed his companions to preserve his teachings.
- This meticulous effort by Companions, Successors, and Followers has led to a rich collection of Hadith literature that remains significant today.

## **The Ijma (Consensus of Legal Opinion)**

Ijma is one of the unanimously agreed sources and considered as the powerful primary source of Islamic law.

### **Literature Meaning**

The literal meaning of Ijma, Unanimous and Unified.

### **Technical Definition**

“The consensus of mujtahids (independent jurists) from the Umma of Muhammad (upon whom be peace and greetings), after his death, in a determined period upon a rule of Islamic law (hukm Sharī‘a).”

## **The Authenticity of Ijma‘ from the Qur’an**

وَمَنْ يُشَاقِقِ الرَّسُولَ مِنْ بَعْدِ مَا تَبَيَّنَ لَهُ الْهُدَىٰ وَيَتَّبِعْ غَيْرَ سَبِيلِ الْمُؤْمِنِينَ نُوَلِّهِ مَا تَوَلَّىٰ وَنُصْلِهِ جَهَنَّمَ ۖ وَسَاءَتْ مَصِيرًا

“But whoever opposes the Messenger after the path of guidance has become clear to him, and follows the path other than that of the believers, We shall keep him in the same (state of disorientation) he has (himself) turned to, and shall (eventually) cast him into Hell and that is an evil dwelling.”

This verse presented as the argument for the consensus of Muslim jurists in any matter. Allah is promising hell and worst ending to those who follow a different way from the way of the believers. Their way of the believers can be determined by explicit or unanimous Ijtihad. So, the consensus after Ijtihad is the true path to be followed by the Muslim believers.

## **Arguments from the Sunna**

Prophet (upon whom be peace and greetings) stated:

إِنَّ أُمَّتِي لَا تَجْتَمِعُ عَلَى ضَلَالَةٍ

“My Umma will not collectively agree upon an error, the hands of Allah’s assistance will remain on jama‘at and the one who slips away will slip towards hell.”

## **Qiyas (Analogy)**

Literal meaning:

“The word Qiyas means measuring or estimating one thing in terms of another. Thus, measuring cloth against the metre rod is Qiyas. It also applies to making two things equal that is, comparing. This comparison may be physical or it may be rational.

Technical Meaning

“The assignment of the ḥukm of an existing case found in the texts of the Qur’an, the sunna, or Ijma‘ to a new case whose ḥukm is not found in these sources on the basis of a canon underlying attribute called the ‘Illah of the ḥukm.

## **Elements of Qiyas**

The Qiyas has four elements which are as following:

- Asl (الأصل) – The original case with a known legal ruling.
- Far' (الفرع) – The new case needing a legal ruling.
- Illah (العلة) – The underlying cause that links the Asl and Far'.
- Hukm (الحكم) – The legal ruling applied to the Far' based on the Illah.

Example of Qiyas

The prohibition of khamr:

“O believers! Wine and gambling and idols mounted (for worship) and divining arrows (for seeking luck—all) are filthy works of Satan. So turn away from them (completely) so that you may prosper. Satan seeks only to breed enmity and spite amongst you by means of wine and gambling, and hinder you from remembering Allah and observing Prayer. Will you abstain (from these evil-generating temptations)?”

Are drugs prohibited? New Case

In the original text there is only khamr which is a drink (vine) made of grapes that is prohibited no other drugs is mentioned but the reason of prohibition is same.

Khamr causes intoxication. ‘Illah

Drugs also cause intoxication. Reasons is same

Khamr is prohibited. Asl

So, the drugs are also prohibited. ḥukm

It is Qiyas.

## **The proof of Qiyas from Hadith**

Sayyidina Mu’adh reported that (when) Allah’s Messenger sent him to Yarnan, he asked him how he would decide (cases). He said, “I will decide in accordance with Allah’s Book (the Qur’an).” He asked, “What, if it is not in the Book of Allah?” He said, “Then according to the sunnah of Allah’s Messenger ----: .” He asked, “And if it is not in the sunnah of

Allah's Messenger?" He said, "I will make ijtiḥād, through my judgment." The Prophet ﷺ - said, "Praise belongs to Allah Who has made the messenger of the Messenger of Allah ﷺ consistent with what pleases him." [Abu Dawud 3592, Ahmed 22161]